

23AHCV01295 23AHCV01295

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-06
Motion: MOTION FOR SANCTIONS
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C08%2F06%2F2026
Source SHA-256: 6f504f1d745f801357887f3eded7720ede9bff6288c983bcadfb73151e3d6764

Case Number: 23AHCV01295 Hearing Date: August 6, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RSP
HOLDINGS, INC.,

Plaintiff(s),

vs.

REBECCA
SWIMMER, et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23AHCV01295

[TENTATIVE]

ORDER RE: MOTION FOR SANCTIONS

Dept.

3

8:30

a.m.

August 6,

2026

)

Plaintiff RSP Holdings, Inc.

("Plaintiff") moves for an order imposing evidentiary sanctions against

defendants Sterling Vet Corp. and Rebecca Swimmer (collectively, "Defendants")

and monetary sanctions against nonparty Jane's Management Systems, LLC ("JMS").

Plaintiff also requests the Court issue an order to show cause re: contempt.

The motion arises from JMS's failure to

abide by the Court's order issued on November 20, 2025, which ordered JMS to

produce documents and overruled JMS's claim that communications between JMS and

Defendants were protected as work product. Plaintiff argues JMS should be

sanctioned because JMS has continued to withhold documents on unsubstantiated

claims of attorney-client privilege, attorney work product, and Swimmer's privacy rights. Plaintiff also argues that Defendants should be precluded from relying on any documents from JMS or testimony from John Ko at trial.

As the Court previously stated in its order dated November 20, 2025, a party's consultations with an expert before hiring counsel are not protectible as "attorney work product" nor can an attorney later "by retroactive adoption, convert the independent work of another, already performed, into his own." (*Jasper Const., Inc. v. Foothill Junior College Dist. of Santa Clara County* (1979) 91 Cal.App.3d 1, 16 [disapproved on other grounds by *Los Angeles Unified School Dist. v. Great American Ins. Co.* (2010) 49 Cal.4th 739, 753.]

JMS did not file a separate statement addressing any of the specific entries in its privilege log that Plaintiff challenges. JMS also failed to submit any evidence, such as a declaration from Mr. Ko or Defendants, that the documents identified in its privilege log and withheld were prepared at the direction of an attorney or are subject to a privacy right that is threatened with a serious intrusion. Accordingly, JMS fails to show that its failure to obey the Court's order was not willful. The motion for monetary sanctions is GRANTED. The Court declines to issue an order to show cause re: contempt.

Plaintiff's request that the Court impose evidentiary sanctions upon Defendants for JMS's failure to abide by the Court's discovery order is DENIED without prejudice because Plaintiff fails to show that JMS is a "managing agent" of Defendants for purposes of the discovery statutes. (*Lopez v. Watchtower Bible and Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 602-603; *Waters v. Superior Court* (1962) 58 Cal.2d 885, 896.) In order to determine whether someone is a "managing agent", the Court considers three factors set forth in *Waters*: (1) does the person exercise judgment and discretion in dealing with the party's matters; (2) can the person be expected to comply with the party's directive to appear; and (3) can the person be anticipated to identify himself or herself with the party's interests. (*Waters*, supra, 58 Cal.2d at p. 896.) The burden is normally on the party seeking discovery. (*Lopez*, supra, 246 Cal.App.4th at pp. 600-601.) Here, there is no evidence that JMS is Defendants' managing agent, therefore, there is no basis for imposing sanctions upon Defendants for JMS's discovery abuses.

In conclusion, monetary sanctions are imposed against JMS in the amount of \$4,660, consisting of 5 hours at Plaintiff's counsel's hourly rate of \$575 and a \$60 filing fee, payable within 20 days. JMS is further ordered to produce, within 20 days, the following documents identified in its privilege log in response to Plaintiff's subpoena: Entries Nos. 1-18, 20-21, 23, 25, 27-44, 46-47, 49-58, 60-68, 70-71, 73-95, 97-104, 106-119, 121-123, 125-132, 134-156, 158-173, 175-239, 241-242, 245-253, 255-260, 270, 272-276, 278, 281-282, 284-298, 301-311, and 313-325.

Defendants' request for sanctions against Plaintiff is GRANTED in the reduced amount of \$1,350, consisting of 3 hours at defense counsel's hourly rate of \$450, payable within 20 days.

Dated
this 6th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.